

Court No. - 21

Case :- WRIT - C No. - 32814 of 2024

Petitioner :- Satya Prakash Gupta

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Anil Kumar Tripathi, Pramod Kumar Saroj

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. The petitioner has challenged the amount being demanded from him by Electricity Department towards electricity dues vide various bills issued to him from time to time.
2. Learned counsel for the respondent- Electricity Department submits that the connection was earlier in the name of father of the petitioner and the same was also disconnected. Subsequently, upon payment of Rs. 20,000/- as part payment towards electricity dues, the connection was restored but the balance amount was not paid.
3. Counsel for the petitioner submits that the petitioner has not consumed electricity for a long period and the demand is incorrect.
4. The said dispute cannot be decided in exercise of writ jurisdiction. We leave it open to the petitioner to approach respondent No. 3 with his objection against the impugned demand so that the same is decided in terms of Clause 6.5 of the Electricity Supply Code, 2005 within four weeks from the date of receipt of the objection.
5. Accordingly, the writ petition stands **disposed of**.

Order Date :- 30.9.2024

Nitika Sri.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)